KINGSLEY CHANETSA
versus
OFFICER IN CHARGE, VEHICLE THEFT SQUAD. ZIMBABWE REPUBLIC POLICE
and
COMMISSIONER GENERAL OF POLICE N.O
and
MINISTER OF HOME AFFAIRS AND CULTURAL HERITAGE N.O
and
PEACEMAKER MAKUVE
and
BRIGHT TATENDA CHITUNGO

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE 19 January, 25 February and 15 May 2026

Civil Trial

H. Chitima, for the plaintiff
T.L. Mapuranga with him *P.E. Chivhenge*, for the fourth defendant
No appearance for first, second, third and fifth defendants.

MAMBARA J:

Background and relief sought

[1] The plaintiff's claim is for a declaratur that he is the lawful and rightful owner and holder of ownership rights in a black 2014 Mercedes Benz, registration number AGG 2117, engine number 274M163024823G, chassis number WDD2050402F066784, and for an order directing the first defendant, or officers acting under him, to release that motor vehicle to him. The cause of action is founded on an alleged sale and delivery of the motor vehicle by Bright Tatenda Chitungo, the fifth defendant, whom the plaintiff says had actual authority, alternatively ostensible authority, from Peacemaker Makuve, the fourth defendant, to sell the vehicle. The fourth defendant resists the claim and counterclaims for the release of the vehicle to her.

[2] The brief factual background is that, on or about 26 February 2024, the plaintiff bought the motor vehicle for US$18 000 from the fifth defendant. At that time the vehicle was registered in the fourth defendant's name. The plaintiff's case is that before the sale was

concluded the fifth defendant produced the vehicle and its documents, arranged telephonic confirmation from the person represented to be the owner, and thereafter delivered the vehicle, its keys and registration book after payment of the purchase price. The fourth defendant denies having authorised a sale. She says she merely asked the fifth defendant to look for a buyer, that no sale was concluded with her authority, and that the vehicle was stolen from her. Following her complaint of theft of trust property against the fifth defendant, the police seized the vehicle and it has remained detained at Southerton Vehicle Theft Squad.

The case as pleaded

[3] The pleadings and the joint pre-trial minute narrowed the dispute to three issues: whether the fifth defendant had the fourth defendant's mandate to sell the motor vehicle; whether there was a valid agreement of sale of the motor vehicle between the plaintiff and the fourth defendant through the fifth defendant; and who, as between the plaintiff and the fourth defendant, is entitled to ownership and possession of the vehicle.

[4] The plaintiff's pleaded case was that he bought the vehicle through the fifth defendant, who had been clothed by the fourth defendant with authority to sell it, alternatively with such outward indicia of authority as estopped her from denying the sale. The fourth defendant's pleaded case was that she never sold the vehicle to the plaintiff, never authorised the fifth defendant to do so, never received the purchase price, and remained the true owner entitled to vindicate the vehicle. The first to third defendants' role was confined to their continued detention of the vehicle pending the unresolved criminal complaint against the fifth defendant.

The plaintiff's case

[5] The plaintiff, Kingsley Chanetsa, testified that he is a motor vehicle trader of about ten years' standing. On 26 February 2024 his brother David advised him that the fifth defendant had a vehicle for sale. When the fifth defendant arrived with the vehicle, the plaintiff recognised him as a person connected to the motor trade. The fifth defendant told him that the vehicle belonged to the fourth defendant and that he had been given the task of selling it. Before committing himself, the plaintiff caused checks to be done with the Vehicle Theft Squad and satisfied himself that the vehicle had not been reported stolen.

[6] The plaintiff further testified that he insisted on confirmation of the fifth defendant's mandate. The original registration book in the fourth defendant's name was produced. The fifth defendant then telephoned the owner. The conversation was conducted on the plaintiff's

brother's phone on loudspeaker. During that process an image of the fourth defendant's national identity document was forwarded to David Chanetsa's WhatsApp. Satisfied by that combination of circumstances, the plaintiff proceeded with the transaction. The agreed price was US$18 000. He paid in cash, and after payment he received the motor vehicle, keys, registration book and a copy of the agreement of sale. The affidavit-form agreement of sale was admitted as exhibit P2, the fourth defendant's ID copy as exhibit P1, and the relevant police statements as exhibits P3 and P4.

[7] The plaintiff said that two- or three-days later difficulties began. William Makore contacted his brother to say that he wanted to collect the vehicle. According to the plaintiff, Makore indicated that he had been instructed by the fourth defendant to surrender the vehicle into the possession of the fifth defendant so that the fifth defendant could sell it. The plaintiff also relied on the fact that both Makore's police statement and the fourth defendant's police statement, as summarised in the record, pointed to the fifth defendant having received the vehicle and its papers in circumstances connected with its sale. The criminal complaint laid against the fifth defendant was one of theft of trust property. The vehicle was eventually impounded and has remained at the Southerton Vehicle Theft Squad yard.

[8] David Chanetsa materially corroborated the plaintiff. He testified that when the fifth defendant brought the vehicle, the parties inspected the documents, which included the original registration book and the previous agreement of sale. Because the vehicle was not in the fifth defendant's name, David insisted on speaking to the owner. He then spoke to a woman on what appeared to be a South African number, who confirmed ownership, while an image of her ID was simultaneously forwarded to his phone. David accepted that the fifth defendant said the purchase price was not to be discussed directly with the owner because his commission depended on the margin. Later, when Makore called to demand return of the vehicle, David refused to surrender it except to the police, and the vehicle was thereafter seized by the police. David remained steadfast under cross-examination and corroborated the plaintiff in material respects.

The fourth defendant's case

[9] The fourth defendant, Peacemaker Nyevero Makuve, testified that she bought the vehicle from the fifth defendant in June or July 2023 through Wheels and Auto garage, and in that connection sent him an image of her identity document to assist with a change of ownership. She said that because she was now working outside Zimbabwe and feared deterioration of the

vehicle from non-use, she later contacted the fifth defendant and told him that she wanted to sell it. Her version was that his task was only to look for a buyer and advise her; once a buyer was found she intended personally to conclude the sale, with payment and receipting to be done through her legal practitioners.

[10] She nonetheless accepted significant facts. She accepted that because the fifth defendant knew the vehicle, she used him for purposes of the intended sale. She accepted that on previous occasions she allowed him to take the vehicle out and show it to would-be purchasers. She accepted that on 26 February 2024, while she was out of the country, she instructed her tenant, William Makore, to release the vehicle to the fifth defendant, who wished to show it to a potential buyer. She also accepted in cross-examination that she trusted the fifth defendant because he worked at a car sale, that the original registration book was always kept in the vehicle, and that she had indeed previously sent him her ID image.

[11] The fourth defendant denied ever authorising a sale at US$18 000. She denied speaking to the plaintiff or David on the day of the sale. She described the affidavit-form agreement of sale between the fifth defendant and plaintiff as fake, and insisted that the vehicle had been stolen. Yet under cross-examination she made further concessions of consequence. She accepted that she had left the motor vehicle together with the registration book in the hands of her tenant Makore, that she had instructed Makore to allow the fifth defendant to drive it out, that it was foreseeable that the fifth defendant could have kept and later used a copy of the previous agreement of sale, and that if a person was allowed to drive out the car with the registration book that person could sell the vehicle without recourse to her. She agreed that, on her previous dealings with him, she had been casual with her instructions to the fifth defendant.

The governing principles

[12] The court is bound to decide the dispute placed before it by the parties, and here that dispute is the crystallised issue of mandate, sale and entitlement to the vehicle as recorded in the pre-trial minute.

[13] The general common-law position is clear. Ownership is jealously protected, and in a vindicatory claim the owner ordinarily need only prove ownership and possession by another. Zimbabwean and South African authorities alike emphasise that principle. But the same authorities also recognise the innocent possessor's answer: estoppel or ostensible authority, where the owner's own conduct made it reasonable for a third party to believe that the

intermediary had authority to deal with the property. *Mashave* v *Standard Bank of South Africa* Ltd 1998 (1) ZLR 436 (S) at 438C makes the point squarely that the innocent purchaser's only defence is estoppel, while *Andrew Phillips (Pvt) Ltd* v *GDR Pneumatics (Pvt) Ltd* 1986 (2) ZLR 65 (SC) at 67 identifies the familiar elements of representation, misleading effect and induced conduct.

[14] Zimbabwean authority is particularly helpful in cases of this kind. In *River Ranch Ltd* v *Delta Corporation Ltd* HH 1/10 the court accepted that a principal whose agent disposes of entrusted property without authority may recover it from third parties unless estopped by having given the agent ostensible authority to deal with it. In *Gwafa* v *SEDCO & Anor* 1999 (2) ZLR 261 (S), drawing on *Stewart* v *Zagreb Properties (Pvt) Ltd* 1971 1 RLR 180 (RA); 1971 (2) SA 346 (RA) and *Reed NO* v *Sager's Motors (Pvt) Ltd* 1970 (1) SA 521 (RA), the principle is put in practical form: if a principal places a servant or agent in a capacity in which persons generally recognised in that capacity have authority to do certain acts, those acts bind the principal as being within the agent's apparent authority. Whether the act falls within that apparent authority is essentially a question of fact.

[15] The broader commonwealth and South African jurisprudence is consistent. *Monzali* v *Smith* [1929] AD 382 at 385 states that where a person, by words or conduct, represents or permits it to be represented that another has authority to act on his behalf, he is bound to one who deals with that other person on the faith of that representation. *Hely-Hutchinson* v *Brayhead Ltd and Another* [1968] 1 QB 549 famously defines ostensible or apparent authority as the authority of an agent as it appears to others. *NBS Bank Ltd* v *Cape Produce Company (Pty) Ltd and Others* 2002 (1) SA 396 (SCA); [2002] 2 All SA 262 (A), and Northern Metropolitan Local Council v Company Unique Finance 2012 (5) SA 323 (SCA); [2012] 3 All SA 498 (SCA), identify the elements of representation by the principal, reasonable reliance, and prejudice. *Makate* v *Vodacom (Pty) Ltd* [2016] ZACC 13; 2016 (6) BCLR 709 (CC); 2016 (4) SA 121 (CC) explains the relationship between these concepts: estoppel is not itself a form of authority, but where the principal's conduct misleads the third party into believing the agent had authority, the principal is precluded from denying that authority.

[16] The authorities cited by the fourth defendant do not detract from those principles. *Electrolux (Pty) Ltd* v *Khota and Anor* 1961 (4) SA 244 (W) at 247-248 warns, correctly, that mere possession by a trader is not enough; there must be some additional circumstance,

sometimes described as the "scenic apparatus", supplied by the owner, which proclaims dominium or jus disponendi. That caution does not help a party who has herself supplied the additional circumstances. Equally, private limitations on an agent's authority do not avail against an innocent third party unless communicated to that third party. That principle appears from *Hlobo* v *Multilateral Motor Vehicle Accidents Fund* 2001 (2) SA 59 (SCA) at 65D and *Maye Serobe (Pty) Ltd* v *LEWUSA obo Members and Others* (J 2377/12) [2015] ZALCJHB 116.

[17] I also accept the proposition, relied on by the fourth defendant in submissions, that estoppel ordinarily operates as a shield and not as an independent sword. The point appears from *Great Zimbabwe University* v *Vengesayi Architects* SC 10/23, *Willowvale Mazda Motor Industries (Pvt) Ltd* v *Sunshine Rent-a-Car* 1996 (1) ZLR 415 (S), Guarantee Investment Corporation Ltd v Shaw 1953 (4) SA 479 (SR), *Rosen* v *Barclays National Bank Ltd* 1984 (3) SA 974 (W) at 983G-I, *Union Government* v *National Bank of SA Ltd* 1921 AD 121 at 128, Mann v *Sydney Hunt Motors (Pty) Ltd* 1958 (2) SA 102 (GW) and *Adriatic Insurance Co* v *O'Mant* 1964 (3) SA 292 (SR). But that does not defeat this suit. The plaintiff's claim is not an abstract cause of action based solely on estoppel. It is a claim to ownership and possession founded upon a sale and delivery effected by a person whom the fourth defendant clothed with ostensible authority. Estoppel here operates in the conventional way: it prevents the fourth defendant from denying the authority that her own conduct made to appear. In any event, the issue of ostensible authority was expressly raised in the pleadings, ventilated at trial, and crystallised in the pre-trial minute. No prejudice arises from the form in which the point was pleaded.

[18] Finally, registration is not conclusive of ownership of a motor vehicle. *Akojee* v *Sibanyoni* and Another 1976 (3) SA 440 (W) stands for the proposition that transfer of ownership of a motor vehicle is governed by the common law and that registration in a person's name is not a pre-requisite to the passing of ownership. The fourth defendant's reliance on the registration book as if it were dispositive is therefore misplaced.

Analysis and application

[19] In my view the plaintiff proved his case on a balance of probabilities. I do not find it necessary to decide whether the fourth defendant gave the fifth defendant express authority to conclude a sale at the precise price of US$18 000. The decisive point is that she unquestionably created the appearance that he had authority to sell. She had previously

bought the same vehicle from him. She chose him as the person to handle the intended disposal of the vehicle because he knew it. She let him take it out on more than one occasion to show prospective purchasers. On the crucial day she instructed her tenant to release the vehicle to him while she was abroad. The original registration book was in the vehicle. He had access to the prior sale papers and to the image of her identity document originally sent by her. Those were not the trappings of a mere messenger. They were the very indicia by which a reasonable purchaser would conclude that he had authority to conclude a sale.

[20] The plaintiff and David acted with caution rather than rashness. They inspected the vehicle's papers, demanded to speak to the owner, received what they understood to be confirmation of ownership and authority, obtained an image of the owner's ID, and checked with the Vehicle Theft Squad that the vehicle was not listed as stolen before the deal was closed. The law does not require a purchaser in those circumstances to unravel the undisclosed private arrangement between principal and agent. Once the outward manifestations of authority were supplied by the principal, the purchaser was entitled to rely on them.

[21] I reject the fourth defendant's attempt at trial to reduce the fifth defendant's role to that of a mere finder of purchasers. That version does not sit with her own concessions. She conceded trust. She conceded release of the vehicle. She conceded the presence of the registration book. She conceded foreseeability that the earlier sale papers could be used. She conceded that a person allowed to drive the car out with the registration book could sell it without recourse to her. Those concessions demolish the foundation of her case. They establish both the representation by conduct and the objective reasonableness of the plaintiff's reliance.

[22] Nor am I persuaded by the reserve-price point, notwithstanding the fourth defendant's reliance on *Property Shop (Pvt) Ltd* v *Dombo* HH 472/24. The evidence and submissions disclosed shifting figures. More fundamentally, any minimum price remained a matter between the fourth and fifth defendants unless and until communicated to the plaintiff by the fourth defendant herself. A principal cannot defeat an innocent third party by relying, after the fact, on undisclosed private instructions. If the fourth defendant meant that the fifth defendant had no authority whatever to conclude a sale below a specified price, it was incumbent upon her to structure her dealings and communications in a manner that made that limitation clear to outsiders. She did not do so.

[23] The fourth defendant's invocation of ruthless vindication authorities such as *Nzara* v *Kashumba* SC 18/18 and *Oakland Nominees Ltd* v *Gelria Mining & Investment Ltd* 1976 (1) SA 441 (A) at 452 is therefore incomplete. Those cases proclaim, and rightly so, the strength of ownership. But they do not abolish the recognised exception where the owner's own conduct has misled an innocent third party. Here the plaintiff does not rest on naked possession. He rests on purchase for value, delivery, and a sale concluded by a person whom the fourth defendant clothed with ostensible authority. As between the plaintiff and the fourth defendant, the better right lies with the plaintiff. The fourth defendant's recourse lies against the fifth defendant who abused her trust and absconded, not against the purchaser whom her own conduct enabled him to deceive.

[24] The continued detention of the vehicle by the police was explicable while the competing civil claims were unresolved and the criminal complaint remained in limbo because of the fifth defendant's disappearance. But that position cannot continue indefinitely once this court has determined the civil entitlement to possession. The plaintiff is the party entitled to the motor vehicle as against the fourth defendant. The consequential order for release should therefore follow.

[25] As to costs, the fourth defendant was the substantive opponent and she has failed both in resisting the claim in convention and in pursuing her counterclaim. I do not, however, consider punitive costs against her to be warranted. The fifth defendant was the author of the fraud but did not appear. In the exercise of the court's discretion, ordinary costs against the unsuccessful fourth defendant will meet the justice of the case.

Order

[26] In the result, judgment is entered for the plaintiff.

[27] It is ordered that—

(a) the plaintiff, KINGSLEY CHANETSA, be and is hereby declared the lawful and rightful owner and holder of ownership rights to the motor vehicle described as a black 2014 Mercedes Benz, registration number AGG 2117, engine number 274M163024823G, chassis number WDD2050402F066784;

(b) the first defendant, being the Officer in Charge, Vehicle Theft Squad, Zimbabwe Republic Police, Southerton N.O, and any subordinate officers or agents acting on his instructions or under his supervision, shall release the said motor vehicle to the plaintiff within five days of service of this order;

(c) the fourth defendant's counterclaim be and is hereby dismissed;

(d) the fourth defendant shall pay the plaintiff's costs of suit on the ordinary scale.

MAMBARA J…….

Mutandiro, Chitsanga & Chitima, plaintiff's legal practitioners
Rubaya & Chatambudza, 4th defendant's legal practitioners